

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2243

By: Waldron

AS INTRODUCED

An Act relating to state government; denouncing antisemitism; adopting definitions; creating guidelines for antisemitism discrimination; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 13001 of Title 74, unless there is created a duplication in numbering, reads as follows:

The Legislature finds that:

1. Antisemitism, including harassment on the basis of actual or perceived Jewish origin, ancestry, ethnicity, identity, affiliation, or faith, remains a persistent, pervasive, and disturbing problem in contemporary American society;

2. Jewish people continue to be a targeted minority in the United States. Data shows, for instance, that Jews are consistently the most likely of all religious groups to be victimized by

1 incidents of hate, and that such incidents are increasing at an  
2 alarming rate;

3 3. State officials and institutions have a responsibility to  
4 protect citizens from acts of hate and bigotry motivated by  
5 discriminatory animus, including antisemitism, and must be given the  
6 tools to do so;

7 4. Valid monitoring, informed analysis and investigation, and  
8 effective policymaking all require uniform definitions;

9 5. While there can be no exhaustive definition of antisemitism,  
10 as it can take many forms, the International Holocaust Remembrance  
11 Alliance (IHRA) Working Definition has been an essential  
12 definitional tool used to determine contemporary manifestations of  
13 antisemitism and includes useful examples of discriminatory anti-  
14 Israel acts that can cross the line into antisemitism;

15 6. The IHRA definition is used by various agencies of the  
16 federal government and by over 30 governments around the world,  
17 recommended for use by the European Council and the European  
18 Parliament, endorsed by the Secretary-General of the United Nations,  
19 included in policy guides prepared by the Organization for Security  
20 and Cooperation in Europe, and has been formally adopted by a  
21 growing number of nations, cities, universities, and civil society  
22 organizations; and

23 7. Use of this definition of antisemitism, although it is not  
24 to be taken as an exhaustive definition, will increase the awareness

1 and understanding of the parameters of contemporary anti-Jewish  
2 discrimination in certain circumscribed areas.

3 SECTION 2. NEW LAW A new section of law to be codified  
4 in the Oklahoma Statutes as Section 13002 of Title 74, unless there  
5 is created a duplication in numbering, reads as follows:

6 A. As used in this section, the term "antisemitism" has the  
7 same meaning as provided for in the working definition of  
8 antisemitism adopted by the International Holocaust Remembrance  
9 Alliance (IHRA) on May 26, 2016, and includes the examples of  
10 antisemitism set forth therein.

11 B. All state departments and agencies shall consider  
12 antisemitism as evidence of discriminatory intent for any law or  
13 policy in this state which prohibits discrimination based on race,  
14 color, religion, or national origin or provides for enhanced  
15 criminal penalties for criminal offenses when the defendant  
16 intentionally selected any victim or group of victims or any  
17 property as the object of the offense because of such victim's or  
18 group of victims' actual or perceived race, color, religion, or  
19 national origin.

20 C. Nothing in this section shall be construed to diminish or  
21 infringe upon any right protected under the First Amendment to the  
22 United States Constitution or the Oklahoma Constitution.

23 D. Nothing in this section shall be construed to conflict with  
24 local, federal, or state discrimination laws.

1 E. Nothing in this section shall be construed to alter the  
2 evidentiary requirements pursuant to which an agency or department  
3 makes a determination that conduct, including harassment, amounts to  
4 actionable discrimination, or to diminish or infringe upon the  
5 rights protected under any other provision of law.

6 F. Nothing in this section shall be construed to impair or  
7 otherwise affect the authority granted by law to a department or  
8 agency.

9 G. This section is not intended to and does not create any  
10 right or benefit, substantive or procedural, enforceable at law or  
11 in equity by any party against the state, its departments, agencies,  
12 or entities, its officers, employees, or agents, or any other  
13 person.

14 SECTION 3. This act shall become effective November 1, 2025.

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